

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Phil Weitzman	Team: Team # 5	CCRB Case #: 200505242	☒ Force ☐ Discourt. ☐ U.S. ☒ Abuse ☐ O.L. ☒ Injury
Incident Date(s) Tuesday, 05/10/2005 8:30 PM	Location of Incident: near § 87(2)(b)	18 Mo. SOL 11/10/2006	Precinct: 69
Date/Time CV Reported Fri, 05/13/2005 8:24 PM	CV Reported At: CCRB	How CV Reported: On-line website	Date/Time Received at CCRB Fri, 05/13/2005 8:24 PM

Complainant/Victim	Type	Home Address

Witness(es)	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Erik Hirsch	17311	930356	PSA 1
2. POM Justin Farren	14035	930127	PSA 1

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. SGT John Todaro	05234	903307	PSA 1
2. POM Fadi Mansour	29211	928698	PSA 1

Officer(s)	Allegation	Investigator Recommendation
A . POM Justin Farren	Abuse: Officer Justin Farren drew his gun.	A . Unsubstantiated
B . POM Erik Hirsch	Abuse: Officer Erik Hirsch drew his gun.	B . Unsubstantiated
C . POM Erik Hirsch	Force: Officer Erik Hirsch used physical force against § 87(2)(b).	C . Exonerated
D . POM Justin Farren	Force: Officer Justin Farren used physical force against § 87(2)(b).	D . Exonerated

Synopsis

§ 87(2)(b) filed a complaint through the CCRB's website on 5/13/2005, on behalf of her then § 87(2)(b) son § 87(2)(b). § 87(2)(b)'s complaint arose from the following series of events: on 5/10/05, § 87(2)(b) was standing in front of his § 87(2)(b) in Brooklyn, when he saw officers identified as **Officer Erik Hirsch** and **Officer Justin Farren** of PSA1 walking down from the first floor landing. Officer Farren allegedly had his gun drawn (allegation A), and § 87(2)(b) ran. The officers chased him, and he was arrested § 87(2)(a) FCT § 380.1 § 87(2)(b). § 87(2)(b) alleged that, after he stopped and gave himself up, Officer Hirsch ran up with his gun drawn (allegation B) and punched him once in the head with his fist. An unidentified officer then allegedly hit § 87(2)(b) on the head, causing him to fall to the ground, and, while § 87(2)(b) was on the ground and being handcuffed, unidentified officers punched him in the face, kicked him in the ribs, pressed his head down into the ground and pressed down upon his leg with a knee, causing him pain. § 87(2)(b) was taken from the scene to § 87(2)(b) for a scratch on his right eye, at the request of § 87(2)(b) who had arrived at the scene, and then to PSA1. He was charged § 87(2)(a) FCT § 380.1 § 87(2)(b).

§ 87(2)(g) and it is therefore recommended that allegations A and B be closed, **"Unsubstantiated."** § 87(2)(g) It is therefore recommended that allegations C and D be closed as, **"Exonerated."**

Summary of Complaint

§ 87(2)(b) a § 87(2)(b) black male § 87(2)(b), stated to his attending EMT on § 87(2)(b) that an officer "punched and pushed his face into the ground." § 87(2)(b) stated to his attending physician at § 87(2)(b) on § 87(2)(b) that "he was running away from the police, then when they caught up he was punched in the face/jaw and kicked on the head...patient denies being hit anywhere else."

§ 87(2)(b) was interviewed at the CCRB on 5/19/2005, and filed a Notice of Claim regarding the incident on § 87(2)(b). § 87(2)(g)

§ 87(2)(b) stated that on 5/10/2005, he and his friend § 87(2)(b) were standing in front of his building, § 87(2)(b), talking on their phones using two-way walkie talkies and occasionally chatting with each other. § 87(2)(b) had six bags of marijuana in his right coat pocket. After about forty-five minutes of hanging out, § 87(2)(b) who was still talking on the phone decided to go into the building.

§ 87(2)(b) stated that he was "about to give § 87(2)(b) a little handshake" goodbye, when he looked into the building and saw the feet of officers identified by the investigation as Officer Hirsch and Officer Farren coming down the lobby stairs. § 87(2)(b) could not provide a description of Officer Farren; he stated that Officer Hirsch was a "young-looking" (under 30) white or light-skinned Hispanic man with short black hair and no facial hair, about 5'10".

§ 87(2)(b) initially did not recognize them as police officers because they were in plainclothes. As the officers moved down the stairs and more of their bodies came into view, § 87(2)(b) saw that one of them (he could not see which) was carrying a black and silver gun. § 87(2)(b) assumed that the officers intended to rob him, and ran, with his cell phone still in his left hand. He also stated at another point in the interview that he ran because of the marijuana in his pocket.

§ 87(2)(b) heard the officers yell that they were police when he had reached the endpoint of a gate that runs by his building. After he realized they were police, he threw the marijuana out of his pocket as he ran. When he reached a small park area with picnic tables, about fifty feet from the building entrance, he stopped, turned around, and raised his hands up with his phone still in his left hand. At another point in the interview, § 87(2)(b) stated that he stopped, "once I realized they were officers."

An officer (identified by investigation as Officer Hirsch) ran up to him with a gun in his hand, put his gun away, and hit § 87(2)(b) with a right jab just over his forehead, causing § 87(2)(b) to stumble.

Officer Hirsch grabbed § 87(2)(b)'s cell phone and tossed it to the ground. Then an officer § 87(2)(b) was not sure who) hit § 87(2)(b) on the back of his head, causing him to fall to the ground. One of these two punches caused an injury to the back of his ear, but he could not clarify how exactly he received this injury.

On the ground, § 87(2)(b) lay chest-down with his left cheek to the ground. An unidentified officer placed his knees on § 87(2)(b)'s legs, causing § 87(2)(b)'s kneecap and his "whole right side" to be "in pain." An officer also kicked § 87(2)(b) in his right rib area, and an officer punched him in the face, causing blood to run down his right eye. As the officers placed him in handcuffs, he tried to pull away in order to wipe the blood, which was burning his eye. At some point, while he was on the ground, an officer pressed his forehead into the ground.

While one or both of the officers pulled his left arm into handcuffs, "they was still hitting me." § 87(2)(b) also stated, "Every movement that I had to make I was getting hit." When asked to clarify by specifically naming the times when he was hit while he was on the ground, § 87(2)(b) replied that the kick to his rib and the punch to the right side of his face were the only two hits he received while on the ground. § 87(2)(b) stated that he could not recall specifically which officer performed which action while he was on the ground.

The officers picked § 87(2)(b) up from the ground, and took him next to their car. § 87(2)(b)'s mother was on the scene about thirty feet away at this point. The officers, whom he assumed were detectives based upon their plainclothes, told him that they weren't interested in "little petty marijuana" and were more interested in heavy narcotics and weapons. They offered to "make this whole thing go away right now" if he helped them recover a gun by calling a friend and asking for one, but § 87(2)(b) refused.

At some point, another car pulled up containing officers identified as Sergeant John Todaro and Officer Fadi Monsour of PSA1. § 87(2)(b) spoke with the officers at some point. § 87(2)(b) was taken to the hospital in an ambulance, and then taken to the PSA1 stationhouse.

§ 87(2)(b) stated that a number of witnesses had been on the scene before his mother arrived: his friend "§ 87(2)(b)", § 87(2)(b)'s husband § 87(2)(b) and her sister § 87(2)(b). § 87(2)(b) stated that he would tell these witnesses to call the CCRB.

§ 87(2)(b) provided a written statement via her electronic complaint on 5/13/05, was interviewed at the CCRB on 5/19/2005, and filed the aforementioned Notice of Claim with § 87(2)(b) or § 87(2)(b) § 87(2)(g).

§ 87(2)(b) first learned about the incident when § 87(2)(b)'s friend § 87(2)(b) knocked on her door and said, "The police chased your son and are beating him up." § 87(2)(b) ran to the scene, where she saw § 87(2)(b), § 87(2)(b), § 87(2)(b)'s sister § 87(2)(b) and a man on a bicycle, whom she recognized from the neighborhood. A crowd of witnesses was screaming, "I saw what you did to him, you kicked him and punched him in the face!"

§ 87(2)(b) spoke with Sergeant Todaro and Officer Hirsch, who provided their names to her. Sergeant Todaro showed § 87(2)(b) bags of marijuana and said, "This is what your son had in his pocket." § 87(2)(b) asked the officers to take § 87(2)(b) to the hospital.

§ 87(2)(b)'s Desk Appearance Ticket for Family Court had Officer Hirsch's name on it.

Results of Investigation

Civilian Statements

In her initial website complaint, § 87(2)(b) provided an address for § 87(2)(b) but did not specify the apartment number. § 87(2)(b) directed the undersigned to contact her lawyer, § 87(2)(b) in order to obtain contact information for § 87(2)(b) and § 87(2)(b) and other witnesses she knew. After leaving four unanswered messages for § 87(2)(b) the undersigned sent a letter and left a voice-mail message with § 87(2)(b) asking her to either provide the information herself or direct her lawyer to provide the information. At the date of this report, neither § 87(2)(b) nor § 87(2)(b) has contacted the CCRB. Metrosearch and Coles Directory searches for the address provided for § 87(2)(b) uncovered multiple listings for various apartments, but none with the last name § 87(2)(b) or first name § 87(2)(b) leaving the investigation with no means of uncovering his apartment number.

Police Officer Statements

Officer Erik Hirsch and **Officer Justin Farren** of PSA1 were interviewed at the CCRB on 7/7/2005 and 8/17/2005, respectively. § 87(2)(g)

§ 87(2)(b). Officer Hirsch is a § 87(2)(b) white male with brown hair. Officer Farren is a § 87(2)(b) white male with brown hair.

On 5/10/2005, Officer Hirsch and Officer Farren worked in plainclothes, assigned to PSA1's Conditions unit, along with Sergeant Todaro and Officer Monsour. The unit was assigned to an unmarked silver Chevy Impala. Officer Hirsch carries a black gun, while Officer Farren carries a black and silver gun.

At 10:00 PM, Sergeant Todaro and Officer Monsour dropped Officer Hirsch and Officer Farren off to do a vertical patrol at § 87(2)(b). There were no dangerous conditions in the building and neither partner drew his gun. They had completed their patrol and were coming down the stairs, when, while standing at a landing on the first floor at the edge of the stairs, they both saw § 87(2)(b) exchange marijuana for US currency with another black male.

The officers walked out the front door, said "Police" and asked to talk to the men, and § 87(2)(b) instantly began running. The officers chased § 87(2)(b) leaving behind the other black male, who was never apprehended. While they ran, § 87(2)(b) took a quantity of marijuana out of his pocket and threw it to the ground. Officer Hirsch took the lead in the chase, while Officer Farren recovered the marijuana and fell behind.

Once they had reached a park area with woodchips on the ground, Officer Hirsch caught up with § 87(2)(b) and grabbed him by the back of his shirt. § 87(2)(b) stopped, "jerked" and began to trip, while Officer Hirsch's momentum caused him to keep going and bump into § 87(2)(b). The legs of the two men got tangled together, causing § 87(2)(b) to trip and land on his stomach, and Officer Hirsch to land on top of him. Officer Hirsch received scratches to his hands from the woodchips.

Officer Farren, who was too far away to see the two men fall down, arrived; by this time, Officer Hirsch had placed one of § 87(2)(b)'s hands in handcuffs, and Officer Farren helped with the other. § 87(2)(b) had placed this hand underneath his body, but only made minimal resistance ("squirming a little") as the officers brought it behind his back.

Neither officer remembered when a crowd of civilians arrived on the scene.

§ 87(2)(b) had a minor scratch on his right eye that was not bleeding. The officers took § 87(2)(b) to the hospital at the request of his mother, who had arrived on the scene and appeared to be upset with § 87(2)(b). They then took him to PSA1. § 87(2)(b) was charged § 87(2)(a) FCT § 380.1

Medical Records

§ 87(2)(a) PBH §18(6)

Police Documents

§ 87(2)(a) FCT § 380.1

Criminal Conviction History

[§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Civilian CCRB History

§ 87(2)(b) and § 87(2)(b) have not filed any other complaints with the CCRB.

Police Officer CCRB History

Officer Farren and Officer Hirsch have not been the subject of any substantiated CCRB allegations during their three-year NYPD tenures.

Status of Civil Proceeding

§ 87(2)(b) and § 87(2)(b) filed a Notice of Claim against New York City on § 87(2)(b), in which they made statements discussed above in the Summary of Complaint section. The Claim asked the city for ten million dollars in damages for § 87(2)(b)'s physical injuries and emotional injuries, and five million dollars for § 87(2)(b) to compensate her for loss of services, loss of society, and § 87(2)(b)'s medical expenses.

According to the New York City Comptroller's Office, § 87(2)(b) and § 87(2)(b)'s claim remains open at the date of this report.

Conclusions and Recommendations

Undisputed Facts

On 5/10/2005 at approximately 10:00 PM, § 87(2)(b) was standing in front of § 87(2)(b) in Brooklyn with a friend, when he became aware that Officer Farren and Officer Hirsch were exiting the building, and ran while dropping bags of marijuana from his pocket. Officer Hirsch and Officer Farren chased § 87(2)(b). Officer Hirsch caught up with § 87(2)(b) and the officers used physical force to subdue and place § 87(2)(b) into handcuffs. § 87(2)(b) was taken to § 87(2)(b) at the request of his mother, who later arrived at the scene, and then to PSA1.

Disputed Facts

§ 87(2)(b) claimed that an unspecified officer had a black-and-silver gun drawn as the officers walked down the lobby stairs, and that Officer Hirsch ran up to him with his gun drawn. The officers denied ever drawing their guns.

§ 87(2)(b) claimed that, after he voluntarily stopped and raised his hands above his head, Officer Hirsch punched him in the head, and then an unspecified officer punched him again in the head, causing him to fall to the ground. § 87(2)(b) alleged, to summarize his various § 87(2)(g) statements, that while he was on the ground he was punched in the face, kicked in the ribs, kicked in the head, and was being hit "every time I made a move." § 87(2)(b) also alleged that his head was pushed into the ground, and that an officer placed his knee on § 87(2)(b)'s leg, causing him pain.

Officer Hirsch claimed that § 87(2)(b) never voluntarily stopped, and that he and § 87(2)(b) tripped over each other when he caught up with § 87(2)(b) and grabbed the back of his shirt. Both officers claimed that the only other force they used involved pulling § 87(2)(b)'s arms to place him in handcuffs.

Officer Identification

§ 87(2)(g)
§ 87(2)(g)
§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(b) stated that he saw an unspecified officer with a black and silver gun drawn walking down the building stairs at the beginning of the incident. § 87(2)(g)

§ 87(2)(b) stated that a single officer ran up to him with his gun drawn, put the gun away and punched him in the face. § 87(2)(g)

§ 87(2)(b) claimed that both Officer Hirsch and Officer Farren used physical force against him. § 87(2)(g)

Credibility

§ 87(2)(g)

§ 87(2)(b) alleged that Officer Hirsch and Officer Farren drew their guns during the incident. § 87(2)(g)

§ 87(2)(b) it is therefore recommended that these allegations be closed, “Unsubstantiated.”

Allegation A, Abuse of Authority: Officer Justin Farren drew his gun.

Allegation B, Abuse of Authority: Officer Erik Hirsch drew his gun.

§ 87(2)(b) alleged that Officer Hirsch and Officer Farren drew their guns during the incident. § 87(2)(g)

§ 87(2)(g) it is therefore recommended that these allegations be closed, “Unsubstantiated.”

Allegation C, Force: Officer Erik Hirsch used physical force against § 87(2)(b)

Allegation D, Force: Officer Justin Farren used physical force against § 87(2)(b)

Patrol Guide Procedure 203-11 instructs New York City police officers to use the “minimum necessary” force when effecting an arrest. § 87(2)(g)

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[Redacted] It is therefore recommended that these allegations be closed,
“Exonerated.”

Investigator:	Date:
Supervisor:	Date:
Reviewed by:	Date:
Reviewed by:	Date: